

DRUG AND ALCOHOL TESTING FOR EMPLOYEES REQUIRED
TO HOLD A COMMERCIAL DRIVERS LICENSE (CDL)

A. Definitions, as Defined by Federal Motor Carrier Safety Administration (FMCSA).

1. Accident. Any accident in which:
 - a. There is a loss of human life; or
 - b. The driver receives a citation under State or local law for a moving violation arising from the accident.
2. Alcohol. The intoxicating agent in beverage alcohol, ethyl alcohol, or other low molecular weight alcohol including methyl and isopropyl alcohol.
3. Alcohol Use. The consumption of any beverage, mixture or preparation, including any medication, containing alcohol.
4. Breath Alcohol Technician (BAT). An individual who instructs and assists individuals in the alcohol testing process and operates an evidential breath testing device (EBT).
5. Commercial Motor Vehicle. A motor vehicle or combination of motor vehicles used to transport passengers or property if the motor vehicle:
 - a. Has a gross combination weight of 26,001 or more pounds, inclusive of a towed unit with a gross vehicle weight rating of more than 10,000 pounds;
 - b. Has a gross vehicle weight rating of 26,001 or more pounds;
 - c. Is designed to transport 16 or more passengers, including the driver; or
 - d. Is of any size and is used in the transportation of hazardous materials requiring placards.
6. Confirmation Test.
 - a. For alcohol testing, means a second test following a screening test with a result of 0.02 or greater that provides quantitative data of alcohol concentration.
 - b. For controlled substance testing, means a second analytical procedure to identify the presence of a specific drug or

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metabolite, which is independent of the screening test and uses a different technique and chemical principle from that of the screening test in order to ensure reliability and accuracy.

7. **Controlled Substances**, for purposes of Policy 7324, means marijuana (THC), cocaine, opioids, phencyclidine (PCP) and amphetamines (including methamphetamines).

8. **Driver** means any Loudoun County Public School (LCPS) employee who holds, or is required to hold, a Commercial Drivers License (CDL) and operates an LCPS-owned commercial motor vehicle. For the purposes of pre-employment testing, the term driver includes a person applying to drive a commercial motor vehicle.

9. **Medical Review Officer (MRO)** means a licensed physician (medical doctor or doctor of osteopathy) responsible for receiving laboratory results generated by an employer's drug testing program, who has knowledge of substance abuse disorders and has appropriate medical training to interpret and evaluate an individual's confirmed positive test result together with their medical history and any other relevant biomedical information.

10. **Reasonable Suspicion** means a belief that the driver has violated the alcohol or controlled substances prohibitions, based on specific, contemporaneous, articulable observations concerning the appearance, behavior, speech, or body odors of the driver.

11. **Refusal to Submit to an Alcohol or Controlled Substance Test** means:

- a. Failing to provide adequate breath for testing without a valid medical explanation after an individual has received notice of the requirement for breath taking;
- b. Failing to provide adequate urine for controlled substance testing without a valid medical explanation after an individual has received notice of the requirement for urine testing; or
- c. Engaging in conduct that clearly obstructs the testing process.

12. **Safety-Sensitive Function** means any of those on-duty functions set forth in 49 CFR 39.5.2, on Duty Time, 1-7, including but not limited to:

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- a. All time at a carrier or shipper plant, terminal, facility, or other property, waiting to be dispatched, unless the driver has been relieved from duty by the employer.
- b. All time inspecting equipment as required by the Federal Motor Carrier Safety Regulations (FMCSR), or otherwise inspecting, servicing, or conditioning any commercial motor vehicle at any time.
- c. All time spent at the driving controls of a commercial motor vehicle.
- d. All time, other than driving time, spent on or in a commercial motor vehicle.
- e. All time loading or unloading a commercial motor vehicle, supervising, or assisting in the loading or unloading, attending a vehicle being loaded or unloaded, remaining in readiness to operate the vehicle, or in giving or receiving receipts for shipments loaded or unloaded.
- f. All time spent performing the driver requirements associated with an accident.
- g. All time repairing, obtaining assistance, or remaining in attendance upon a disabled commercial motor vehicle.

13. **Screening Test (Initial Test)** means:

- a. In alcohol testing, an analytical procedure to determine whether a driver may have a prohibited concentration of alcohol in the individual's system;
- b. In controlled substance testing, an immunoassay screen to eliminate "negative" urine specimens from further consideration.

14. **Substance Abuse Professional** means a licensed physician (Medical Doctor or Doctor of Osteopathy), or a licensed or certified psychologist, social worker, employee assistance professional, or addiction counselor (certified by the National Association of Alcoholism and Drug Abuse Counselors Certification Commission) with knowledge of and clinical experience in the diagnosis and treatment of alcohol and controlled substances- related disorders.

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B. Prohibited Conduct.

1. A driver covered by the provisions of this Policy shall not:
 - a. Report for duty or remain on duty requiring the performance of a safety sensitive function while having an alcohol concentration of 0.04 or greater;
 - b. Be on duty or operate a commercial motor vehicle while the driver possesses alcohol unless the alcohol is manifested and transported as part of a shipment;
 - c. Use alcohol while performing safety sensitive functions;
 - d. Perform a safety sensitive function within four hours after using alcohol;
 - e. When required to take a post-accident alcohol test, use alcohol within eight hours following an accident or prior to undergoing a post- accident alcohol test, whichever is first;
 - f. Refuse to submit to an alcohol or controlled substance test required by this Policy;
 - g. Report for duty or remain on duty requiring the performance of safety sensitive functions when the driver possesses or uses any controlled substances except when the use is pursuant to the instructions of a physician, who has advised the employee that the substance does not adversely affect the employee's ability to operate a commercial motor vehicle safely; or
 - h. Report for duty, remain on duty or perform a safety sensitive function if the driver tests positive for controlled substances.

C. Tests Required.

1. Pre-Employment Testing. Before a driver can first perform a safety-sensitive function covered by this Policy, the driver must undergo testing for controlled substances.

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- a. If the driver is a new hire, the testing must occur after obtaining the CDL permit or license, but before the driver performs any safety-sensitive function.
- b. If the driver is a current employee who is promoted or transferred to a position or assignment that requires the driver to hold a CDL, the testing must occur after the employee obtains the CDL permit or license, but before the employee performs any safety-sensitive function.

2. Post-Accident Testing. As soon as practicable following an accident, the driver(s) involved in the accident must be tested for alcohol and controlled substances.

- a. An alcohol test under this Policy should be administered within two hours following the accident, but in no case more than eight hours after the accident.
- b. A controlled substances test under this Policy must be administered within thirty-two hours following the accident.
- c. Post-accident tests may be administered by Federal, State, or local law enforcement officials having authority to conduct such tests pursuant to their investigation of the accident provided such tests conform to applicable legal requirements and the results thereof are provided to the school division.
- d. A driver who is subject to post-accident testing shall remain readily available for such testing. If the driver is not available for any reason, except leaving the accident scene to obtain assistance in responding to the accident or to obtain necessary emergency medical care, the driver will be deemed to have refused to submit to testing.

3. Random Testing. A percentage of drivers will be subject to random alcohol testing and to random controlled substances testing each year. The percentage of drivers to be tested will be as specified in Title 49 CFR, Section 382.305. (At the effective date of this Policy, the minimum annual percentages were ten percent of the average number of driver positions for alcohol testing and fifty percent of the average number of driver positions for controlled substances testing.) Selections of drivers to be tested shall be done by a method which provides that each driver will have an equal chance of being selected each time that selections are made. Thus, a driver might be chosen more than once during a year.

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- a. Random tests will be unannounced and the dates for such tests will be spread reasonably throughout the calendar year.
- b. A driver selected for random testing will be required to report to the testing site immediately upon notification.
- c. Random tests shall be scheduled while the driver is performing a safety sensitive function, just before performing a safety sensitive function, or just after performing a safety sensitive function.

4. Reasonable Suspicion Testing. Drivers shall be required to submit to an alcohol and/or a controlled substances test when there is a reasonable suspicion to believe that the driver has violated the School Board's policy covering alcohol or controlled substances.

- a. The required observations for alcohol and/or controlled substance reasonable suspicion testing shall be made by a supervisor (or administrator) who has received training in accordance with the provision of 49 CFR Part 382. Such supervisor who makes such observations with respect to controlled substances shall make a written record of the supervisor's observations within 24 hours of the observed behavior or before the results of the drug test are released, whichever is earlier.
- b. Alcohol and/or controlled substance reasonable suspicion testing is authorized only if the observations are made during, just before, or just after the period of the work day the driver is performing a safety sensitive function.

5. Return-to-Duty Testing. The severity and/or egregious nature of the situation will be considered to determine if an employee is given the chance to perform a return-to-duty test. if an employee tested positive for alcohol and/or a controlled substance, prior to returning to work, the employee may be offered paid leave, and during this leave period, must satisfy the requirements of an alternative substance abuse and recovery program, within the timeline prescribed by a SAP and the driver shall undergo a return-to-duty alcohol and/or controlled substances test, as applicable.

- a. An alcohol test must indicate an alcohol concentration of less than 0.02, and a controlled substances test must indicate a verified negative result for controlled substances use.

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6. Follow-up Testing. Following a determination by a SAP that a driver is in need of assistance in resolving problems associated with alcohol misuse and/or use of controlled substances, a driver permitted to return to duty shall be subject to unannounced follow-up alcohol and/or controlled substances testing as directed by the substance abuse professional.

- a. At least six tests will be conducted during the twelve calendar months following the employee's return to work. The period of follow-up testing shall not exceed sixty months.
- b. Follow-up testing shall be performed only when the driver is performing safety sensitive functions, or immediately prior to performing safety sensitive functions or immediately after performing safety sensitive functions.

D. Testing Procedures.

1. All alcohol and controlled substances testing shall be performed by a laboratory approved by the National Institute of Drug Abuse (NIDA).

2. Tests shall be conducted as specified in the Department of Transportation's regulations, Title 49 CFR Part 40.

3. Controlled substances tests must follow split sample procedures.

4. Alcohol Test Results:

- a. The Breath Alcohol Technician (BAT) shall forward the results of all alcohol tests to the Director of Transportation or designee.
- b. If the result of the screening test is an alcohol concentration of 0.02 or greater, the BAT shall perform a confirmatory test which shall be conducted within twenty minutes after the completion of the screening test, but not less than fifteen minutes after the screening test.
- c. If the confirmatory test is positive, the BAT shall immediately communicate the result to the Director of Transportation or designee.

5. Controlled Substances Test Results.

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- a. The NIDA-approved testing laboratory shall forward the results of the test to a Medical Review Officer (MRO) for review.
- b. If the test result on the specimen is positive, the MRO shall contact the driver (confidentially) and give the driver the opportunity to discuss the test results. The MRO shall inform the driver of his or her right to request that the MRO direct that the secondary sample be tested in a different NIDA approved laboratory for presence of the drug(s) for which a positive result was obtained.
- c. The MRO shall honor the driver's request if it is made within seventy- two hours of the driver having been informed of a verified positive test result. The cost of this second test shall be borne by the driver.
- d. If the MRO is not able to contact the driver, the MRO shall report to the Director of Transportation or designee that the MRO has made all reasonable efforts to contact the driver. The Director of Transportation or designee shall, as soon as practicable, ask the driver to contact the MRO before driving or within twenty-four hours, whichever is earlier.
- e. The MRO may verify a test as positive without communicating with the driver if:
 - (i) The driver refuses to discuss the test results;
 - (ii) More than five days have passed since the driver was asked by the Director of Transportation or designee to contact the MRO.
- f. After contacting the driver, but in no case more than three business days after completing the review, the MRO shall report the test results to the Director of Transportation or designee. The MRO shall provide the following information:
 - (i) The controlled substances test being reported was in accordance with 49 CFR Part 40;

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- (ii) The name of the driver for whom the test results are being reported;
- (iii) The type of test (e.g., pre-employment, random, post-accident, etc.);
- (iv) The date and location of the test collection;
- (v) The identities of the persons or entities performing the collection, analysis of specimens and serving as the MRO for the specific test; and
- (vi) The verified results of a controlled substances test, either positive or negative, and, if positive, the identity of the controlled substances(s) for which the test was verified positive.

E. Records.

1. The School Board shall maintain records of its alcohol misuse and controlled substances use prevention programs as provided by Part 382.401. The records shall be maintained in a secure location with controlled access.
2. The School Board shall not release driver information required by this Policy except as expressly authorized or required by law.
3. Records shall be made available to a subsequent employer upon receipt of a specific written request from a driver.
4. The School Board may obtain from any previous employer of a driver, provided the driver has given their written consent, any information concerning the driver's participation in a controlled substances and alcohol testing program.
5. The School Board shall obtain and review the information listed below from any employer the driver performed safety-sensitive functions for in the previous two years. The information must be obtained and reviewed no later than 14 days after the first time a driver performs safety-sensitive functions. The information obtained must include:
 - a. Information on the driver's alcohol test in which a breath alcohol concentration of 0.04 or greater was indicated;

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- b. Information on the driver's controlled substances test in which a positive result was indicated; and
- c. Any refusal to submit to a required alcohol or controlled substance test.

F. Notwithstanding the consequences provided for under the regulations of the Federal Highway Administration contained in 49 CFR Parts 40 and 382, et al, any employee violating this policy shall be subject to the following consequences established by the Loudoun County School Board:

1. Refusal to consent to alcohol and/or drug testing will result in immediate removal from duty and termination of employment.

2. A positive test for a controlled substance will result in immediate removal from duty, a referral to an employee assistance program, and may result in discipline up to, and including, termination and termination of employment.

- a. The Department for Human Resources and Talent Development (HRTD) will advise employees of resources available to them for evaluating and resolving problems associated with the misuse of a controlled substance.
- b. Any evaluation and rehabilitation expenses shall be borne solely by the employee.

3. A blood alcohol concentration of .04 or greater will result in the immediate removal from duty, a referral to an employee assistance program, and may result in discipline up to, and including, and termination of employment.

- a. HRTD will advise employees of resources available to them for evaluating and resolving problems associated with the misuse of alcohol.
- b. Any evaluation and rehabilitation expenses shall be borne solely by the employee.

4. A blood alcohol concentration of .02 to .039 will result in the immediate removal from duty, suspension from duty on administrative leave without pay, and referral to the employee assistance program. Test results at this level, coupled with facts and circumstances indicating the employee was under the influence of alcohol

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at work, may lead to discipline up to and including termination, provided the action is not based solely on the test results.

- a. Before being permitted to return to a safety-sensitive position, an employee must submit to a return-to-duty alcohol test and must have a blood alcohol concentration of less than .02.
- b. A driver permitted to return to duty will be subject to a minimum of six follow-up tests in a twelve month period.
- c. A blood alcohol concentration of .02 or greater arising from the return- to-duty testing or follow-up testing will result in immediate termination of employment.

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Cross Refs: Policy [7322](#), Records Required of Commercial Driver's License (CDL) Holders; Policy [7550](#), Drug- And Alcohol-Free Workplace; Policy [7324](#), Drug and Alcohol Testing for Employees Required to Hold a Commercial Driver's License (CDL)

Legal Refs: Code of Federal Regulations, [Title 49, Part 382](#); Code of Federal Regulations, [Title 49, § 40](#), et seq.